

IAS PRELIMS/MAINS



SCIENCE & TECHNOLOGY



A COMPREHENSIVE COVERAGE

MODULE - 28

INFORMATION & COMMUNICATION TECHNOLOGY (ICT) - 9

THE PERSONAL DATA PROTECTION BILL, 2019

The Personal Data Protection Bill, 2019 was introduced in Lok Sabha on December 11, 2019. The Bill seeks to provide for protection of personal data of individuals, and establishes a Data Protection Authority for the same.

APPLICABILITY

- The Bill governs the processing of personal data by:
 - i. government,
 - ii. companies incorporated in India, and
 - iii. foreign companies dealing with personal data of individuals in India.
- Personal data is data which pertains to characteristics, traits or attributes of identity, which can be used to identify an individual.
- The Bill categorises certain personal data as sensitive personal data. This includes financial data, biometric data, caste, religious or political beliefs, or any other category of data specified by the government, in consultation with the Authority and the concerned sectorial regulator.



THE PERSONAL DATA PROTECTION BILL, 2019

OBLIGATIONS OF DATA FIDUCIARY

- A data fiduciary is an entity or individual who decides the means and purpose of processing personal data. Such processing will be subject to certain purpose, collection and storage limitations. For instance, personal data can be processed only for specific, clear and lawful purpose.
- Additionally, all data fiduciaries must undertake certain transparency and accountability measures such as:
 - (i) implementing security safeguards (such as data encryption and preventing misuse of data), and
 - (ii) instituting grievance redressal mechanisms to address complaints of individuals. They must also institute mechanisms for age verification and parental consent when processing sensitive personal data of children.



THE PERSONAL DATA PROTECTION BILL, 2019

RIGHTS OF THE INDIVIDUAL

- The Bill sets out certain rights of the individual (or data principal). These include the right to:
 - (i) obtain confirmation from the fiduciary on whether their personal data has been processed
 - (ii) seek correction of inaccurate, incomplete, or out-of-date personal data
 - (iii) have personal data transferred to any other data fiduciary in certain circumstances and
 - (iv) restrict continuing disclosure of their personal data by a fiduciary, if it is no longer necessary or consent is withdrawn.



THE PERSONAL DATA PROTECTION BILL, 2019

GROUNDS FOR PROCESSING PERSONAL DATA

- The Bill allows processing of data by fiduciaries only if consent is provided by the individual. However, in certain circumstances, personal data can be processed without consent.
- These include:
 - (i) if required by the State for providing benefits to the individual,
 - (ii) legal proceedings,
 - (iii) to respond to a medical emergency.



THE PERSONAL DATA PROTECTION BILL, 2019

SOCIAL MEDIA INTERMEDIARIES

- The Bill defines these to include intermediaries which enable online interaction between users and allow for sharing of information.
- All such intermediaries which have users above a notified threshold, and whose actions can impact electoral democracy or public order, have certain obligations, which include providing a voluntary user verification mechanism for users in India.



THE PERSONAL DATA PROTECTION BILL, 2019

DATA PROTECTION AUTHORITY

- The Bill sets up a Data Protection Authority which may:
 - (i) take steps to protect interests of individuals,
 - (ii) prevent misuse of personal data, and
 - (iii) ensure compliance with the Bill.
- It will consist of a chairperson and six members, with at least 10 years' expertise in the field of data protection and information technology.
- Orders of the Authority can be appealed to an Appellate Tribunal. Appeals from the Tribunal will go to the Supreme Court.



THE PERSONAL DATA PROTECTION BILL, 2019

TRANSFER OF DATA OUTSIDE INDIA

- Sensitive personal data may be transferred outside India for processing if explicitly consented to by the individual, and subject to certain additional conditions.
- However, such sensitive personal data should continue to be stored in India.
- Certain personal data notified as critical personal data by the government can only be processed in India.



THE PERSONAL DATA PROTECTION BILL, 2019

EXEMPTIONS

- The central government can exempt any of its agencies from the provisions of the Act:
 - (i) in interest of security of state, public order, sovereignty and integrity of India and friendly relations with foreign states, and
 - (ii) for preventing incitement to commission of any cognisable offence (i.e. arrest without warrant) relating to the above matters.



THE PERSONAL DATA PROTECTION BILL, 2019

EXEMPTIONS

- Processing of personal data is also exempted from provisions of the Bill for certain other purposes such as:
 - (i) prevention, investigation, or prosecution of any offence, or
 - (ii) personal, domestic, or
 - (iii) journalistic purposes. However, such processing must be for a specific, clear and lawful purpose, with certain security safeguards.
- Sharing of Non-Personal Data with Government
 - The central government may direct data fiduciaries to provide it with any:
 - (i) non-personal data and
 - (ii) anonymised personal data (where it is not possible to identify data principal) for better targeting of services.



THE PERSONAL DATA PROTECTION BILL, 2019

AMENDMENTS TO OTHER LAWS

The Bill amends the Information Technology Act, 2000 to delete the provisions related to compensation payable by companies for failure to protect personal data.



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